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February 11, 2025

SENATE BILL NO. 562

By: Alvord of the Senate

and

Miller of the House

An Act relating to crimes and punishments; amending 21 O.S. 2021, Sections 1902 and 1903, which relate to the Bus Passenger Safety Act; modifying scope of certain definitions; adding definitions; expanding scope of unlawful acts; updating statutory language and references; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1902, is amended to read as follows:

Section 1902. As used in the Bus Passenger Safety Act:

1. "Bus" means a vehicle designed to carry passengers that is part of a network of passenger vehicles for use by the public, running on a regular schedule of routes, times, and fares;

2. "Bus transportation company" or "company" means any person or governmental entity providing for-hire transport to passengers or cargo by ~~bus~~ rolling stock transit vehicles upon the roads, streets, highways, public or dedicated rights-of-way, and turnpikes of this state;

1 3. "Deadly or dangerous weapon" includes all weapons listed in
2 Section 1287 of this title, and any other weapon capable of
3 inflicting serious bodily injury, except for a weapon carried for
4 lawful self-defense in compliance under the Oklahoma ~~Self-Defense~~
5 Self-Defense Act;

6 4. "Passenger" means any person served by the bus
7 transportation company; ~~and~~

8 5. "Rolling stock transit vehicles" include buses, vans, cars,
9 railcars, locomotives, trolley cars, ferry boats, and vehicles used
10 for support services;

11 6. "Terminal" means a bus station, stop, platform, or depot or
12 any facility operated or leased by or operated on behalf of a bus
13 transportation company. This term shall include a reasonable area
14 immediately adjacent to any designated stop along the route traveled
15 by any ~~bus~~ rolling stock transit vehicle operated by a bus
16 transportation company and parking lots or parking areas adjacent to
17 a terminal; and

18 7. "Transit worker" means any employee, contractor, or
19 volunteer working on behalf of a transit agency.

20 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1903, is
21 amended to read as follows:

22 Section 1903. A. No person shall by force or violence, or
23 threat of force or violence, seize or exercise control of any ~~bus~~
24 rolling stock transit vehicle. Any person violating this subsection

1 shall be guilty of a felony and shall, upon conviction, be punished
2 by imprisonment in the custody of the Department of Corrections for
3 not more than twenty (20) years, or by a fine ~~of~~ not more than
4 Twenty Thousand Dollars (\$20,000.00), or by both such fine and
5 imprisonment.

6 B. ~~In addition, no~~ No person shall intimidate, threaten,
7 assault, or batter any driver, attendant, guard, transit worker, or
8 passenger of any ~~bus with intent to violate subsection A of this~~
9 ~~section~~ rolling stock transit vehicle or cause disruption to the
10 provided service or cause harm to any person. Any person violating
11 this subsection shall be guilty of a felony and shall, upon
12 conviction, be punished by imprisonment in the custody of the
13 Department of Corrections for not more than ten (10) years, ~~or~~ by a
14 fine ~~of~~ not more than Five Thousand Dollars (\$5,000.00), or by both
15 such fine and imprisonment.

16 C. ~~In addition, any~~ Any person violating subsection A or B of
17 this section using a dangerous or deadly weapon shall be guilty of a
18 felony, and shall, upon conviction, be punished by imprisonment in
19 the custody of the Department of Corrections for not more than
20 twenty (20) years, ~~or~~ by a fine ~~of~~ not more than Twenty Thousand
21 Dollars (\$20,000.00), or by both such fine and imprisonment.

22 D. It shall be unlawful for any person to discharge any firearm
23 into or within any ~~bus~~ rolling stock transit vehicle, terminal, or
24 other transportation facility, unless such action is determined to

1 have been in defensive force resulting from reasonable fear of
2 imminent peril of death or great bodily harm to himself or herself
3 or another. Such person shall, upon conviction, be guilty of a
4 felony punishable by a fine ~~of~~ not more than Five Thousand Dollars
5 (\$5,000.00) ~~or~~, by imprisonment in the custody of the Department of
6 Corrections for not more than five (5) years, or by both such fine
7 and imprisonment.

8 SECTION 3. It being immediately necessary for the preservation
9 of the public peace, health or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

12 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
13 February 11, 2025 - DO PASS
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